

What Does It Mean to Be an Ethical Lawyer? The Importance of Context

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Keywords

ethical conduct, professional responsibility, legal profession, lawyer regulation, communities of practice

Abstract

Although the entire legal profession shares a single ethical code, lawyers' understanding of what it means to be "ethical" shows considerable variation. This article discusses the factors that shape lawyers' ethical conduct in practice. We review the role of legal education, bar associations, the workplace, and hard and soft regulators in the construction of lawyers' ethical values. We then explore the important role that practice contexts play in shaping lawyers' understanding of appropriate ethical conduct. Some of the key explanatory factors for differences among lawyers include type of client, office size, specialty and specialization, regulators, and the extent to which lawyers engage in litigation. We then anticipate new ethical challenges for lawyers created by market pressures and other factors and identify questions for future research.

1. INTRODUCTION

In recent years, high-profile lawyers who engaged in misconduct have garnered significant public attention. Jeffrey Clark, a high-ranking Justice Department official; Rudy Giuliani, a former US Attorney; and other lawyers face criminal charges and lawyer discipline for attempting to subvert the outcome of the 2020 presidential election (Cummings 2024). A renowned California lawyer, Tom Girardi, now disbarred, is facing trial for stealing \$18 million from clients, and a former New York Big Law partner, Evan Greebel, was disbarred and jailed for helping his client defraud investors. A Massachusetts prosecutor, Anne Kaczmarek, was disbarred in a highly publicized case for violating thousands of criminal defendants' due process rights by failing to disclose that a government chemist had mishandled drug evidence and faked drug tests.

What makes some lawyers engage in misconduct while others do not? How do lawyers understand what it means to be "ethical"? The legal profession's single code of conduct, written to apply to the entire profession, does not adequately account for the fact that lawyers represent a wide range of clients, perform different kinds of legal work, operate in different office settings, specialize in vastly different fields, and face different risks of sanctions. This article surveys the factors shaping lawyers' ethical conduct in practice. It discusses both the traditional influences of education, rules, regulation, and enforcement and the social construction of acceptable lawyer conduct. As Nelson & Trubek (1992, pp. 185, 187) note, there are "multiple and interacting arenas in which professionalism is produced and reproduced" with "often conflicting ideas about what lawyers should and should not do."

Lawyers learn acceptable professional conduct from their communities of practice, that is, the "groups of lawyers with whom practitioners interact and to whom they compare themselves and look for common expectations and standards" (Mather et al. 2001, p. 6). Office colleagues are a critical part of that community (Carlin 1966, Kirkland 2012, Suchman 1998). Lawyers work in overlapping communities of practice that may have inconsistent norms.

This article explores how communities of practice shape lawyers' ethical conduct using empirical research on lawyers in different fields and practice settings. Communities are shaped by type of legal activity (e.g., litigation, transactional), workplace organization (including size of firm), clients, geography, lawyers' personal identity, regulators, and substantive law. Due to space constraints, the article does not address individual personality differences or cognitive biases that can account for lawyer misconduct (Robbenolt & Sternlight 2013). For the same reason, the article focuses primarily on research on US lawyers.

2. THE CONSTRUCTION OF ETHICAL VALUES

When lawyers talk about ethics, they are usually referring not to ordinary notions of morality but rather to the conduct that is expected and required of lawyers as set forth in their professional rules and other law (Chambliss 2012, Suchman 1998). Their understanding is informed by a range of experiences, starting in law school, where they learn about the formal rules of professional conduct. Once they begin work, their understanding is shaped by the norms of practice they observe in the workplace and bar organizations and by formal regulators and other factors.

2.1. Law School

Following the Watergate scandal in the early 1970s, which implicated many government lawyers in criminal conduct, the American Bar Association (ABA) required all law students to receive formal instruction in the rules of professional conduct to enable them to recognize some of the ethical concerns lawyers confront in their work (Clark 2000). Yet some of the rules are widely accepted,

and others are viewed as less important. The rules themselves are sometimes inconclusive. And they sometimes conflict with notions of fairness or the public interest.

Despite bar leaders' hopes that legal education would inculcate ethical values, cynicism was widespread. Critics of legal education argued that law schools' Socratic method devalued concerns of morality (Zemans & Rosenblum 1981) and reproduced social hierarchy and inequality (Kennedy 1983). More recent research on the language of law schools supported this criticism. Mertz (2007) showed that as students learn "to think like a lawyer," they also learn to push aside concerns of morality and social context in favor of abstract legal doctrine. Law students also observe how the profession's norms and values actually operate through their clinic work, field placements, and summer employment. Students absorb the legal profession's hierarchy of income and prestige, which associates the greatest professional prestige with working for corporate clients in large law firms (Heinz & Laumann 1982, Heinz et al. 2005). Stover (1989) and Granfield (1992) showed how law students' interests shifted away from public interest work in favor of jobs in the private sector. More recently, some law schools have explicitly encouraged students to develop their professional identities (Daicoff 2014, Hamilton & Monson 2011) and to consider public interest careers (Albiston et al. 2021).

2.2. Workplace

The workplace has long been considered the most important site where lawyers construct their understanding of how to behave in practice. Carlin's (1962, 1966) studies of the Chicago and New York City bars showed the social stratification of the profession and the impact of clientele and firm size on lawyers' ethics. Heinz & Laumann's (1982) two hemispheres thesis further documented the substantial differences between private practitioners serving individual clients and small businesses (who typically worked in small firms or solo practice) and those serving large organizational clients (who worked in larger firms). National survey results from the After the JD Project indicate that rather than "hemispheres," a substantially larger proportion (67%) of lawyers' time is now devoted to large, organizational clients (Nelson et al. 2023).

These studies support Wilkins's (1990) critique of the universalistic assumptions of the profession's legal ethics rules. The vastly different contexts of legal practice render the already vague rules inadequate in practice (Wilkins 1990, 2012). Hence, observed differences in lawyers' ethical behavior in different work settings and types of work should not be surprising. Geographic differences in legal practice—from the large, urban bar to small, rural communities—reveal further variation in lawyers' norms and behavior (Handler 1967, Landon 1990).

As law has become more complex and as the market for legal services has changed, lawyers have become increasingly specialized. Compared to 1995, when one-third of lawyers surveyed in Chicago reported working in one field (Heinz et al. 2005), the After the JD study of lawyers almost 20 years later reveals that two-thirds of lawyers describe themselves as specialists (Plickert 2022). Whereas solo and small firm lawyers used to practice in several personal plight areas (Carlin 1962), well over half of these lawyers now specialize in a single area or limit their practices primarily to two practice areas (Levin 2004, Plickert 2022). After the JD Project data also show that individual fields of practice "have become more specialized over time and that lawyers become more specialized as their careers progress" (Nelson et al. 2023, p. 103). Lawyers' ethical conduct may be shaped by peers in their specialized fields of practice as much as by abstract, universal rules.

2.3. Bar Associations

Bar associations are another arena where lawyers construct their understanding of what it means to be a professional (Nelson & Trubek 1992). Although modern bar associations first appeared in

the 1870s to improve the status and conduct of the legal profession, they operated as an exclusive club for the White Protestant corporate elite (Halliday 1987, Powell 1988). Auerbach's (1976) classic study showed elite bar associations' efforts to prevent new immigrants from entering the profession. For many years, bar associations administered lawyer discipline, and their efforts reinforced the profession's hierarchy, with elite corporate lawyers enforcing discipline rules designed to limit immigrant lawyers' client acquisition efforts and contingent fees (Abel 1989, Carlin 1966, Powell 1988).

The ABA, although now only composed of approximately 20% of all active US lawyers (Sloan 2022), plays an outsized role in articulating the formal rules and values of the profession. There are also hundreds of state and local bar associations and affinity bars, the latter composed of lawyers with common personal characteristics or political views. Specialty bar associations for lawyers who work in a particular practice area—and specialty committees within state and local bars—also communicate the norms and values of lawyers practicing in different fields of law (Kilpatrick 1997, Levin 2011). Some specialty bars have written their own voluntary rules of conduct that provide guidance for handling issues that arise in their practice areas (Mather et al. 2001). Bar associations facilitate mentoring, education, and information exchange among lawyers about how to behave ethically in practice (Johnstone 1996, Kilpatrick 1997, Levin 2011).

2.4. “Hard” Regulators

Hard regulators contribute to lawyers' understanding of appropriate ethical conduct by investigating and sanctioning lawyers through the force of law. Hard regulators include disciplinary authorities, which can impose sanctions for violations of lawyers' professional rules, and courts, which can impose sanctions for misconduct in cases before them. The criminal law and civil law also serve as hard regulators of lawyers' conduct.

2.4.1. Disciplinary enforcement. Lawyers can be subject to state discipline, federal court discipline, and federal agency discipline. All lawyers are required to comply with their states' professional rules of conduct, which are modeled on the ABA's *Model Rules of Professional Conduct*. The most frequent complaints filed with state disciplinary authorities involve neglect of client matters, followed by failure to communicate and fees (Abel 2008, Mather & McEwen 2012). Only a tiny fraction of complaints result in disciplinary sanctions, with the most serious sanctions (suspension or disbarment) usually reserved for theft of client money or serious crimes. Most state lawyer discipline is private (ABA 2023a).

Solo or very small firm lawyers receive a disproportionate percentage of all discipline complaints (Abel 2008, Farkas 2019). These lawyers are more likely than large firm lawyers to represent individuals who are highly emotional about their cases (Arnold & Hagen 1992, Mather & McEwen 2012). Large firm lawyers are more likely to have corporate clients that can afford to sue for malpractice or threaten to take their business to another firm if the problem is not corrected (Wilkins 1992). In addition, solo and small firm practitioners may lack the staff and ethical infrastructure that enable other lawyers to avoid the most common disciplinary complaints. Lawyers in these practices have the fewest resources to fight disciplinary complaints (Arnold & Hagen 1992, Levin 2004), and their cases do not present the difficulties of proof that can arise when prosecuting large firm lawyers (Schneyer 1991). Bias in the disciplinary system may also explain the disproportionate amount of discipline imposed on these lawyers (Farkas 2019). Regardless of whether solo and small firm practitioners actually engage in more wrongdoing than other lawyers, the former are very aware of the threat of discipline (Levin 2004).

Lawyers practicing in certain specialties are also subject to federal agency rules governing lawyers' conduct. Some of these agencies (e.g., Internal Revenue Service, Patent and Trademark

Office, and the Securities and Exchange Commission) can discipline lawyers for misconduct. Rigorous disclosure requirements and other rules shape lawyers' understanding of their professional obligations when dealing with these agencies (Conley & Mather 2012, Schmidt 2012).

2.4.2. Courts. Judges can also impose monetary penalties or contempt sanctions for lawyer misconduct in cases before them. Such misconduct includes filing frivolous pleadings, making false statements to the court or opposing parties, and withholding evidence. Courts' general failure to sanction serious violations of discovery rules has contributed to routine abuses of the discovery process (Suchman 1998). Many lawyers view evasive responses to discovery requests as part of a "game" (Gallagher 2011; Kirkland 2005, 2012). Abuses of the process increase litigation costs and may result in the opposing side never learning of important information. Nevertheless, courts only occasionally impose significant sanctions.

2.4.3. Criminal and civil liability. Lawyers' understanding of their professional obligations is also shaped by the substantive law. Lawyers are prohibited from assisting clients in criminal activities and can be prosecuted when they do so (Regan 2004). A lawyer's conviction of a serious felony will also result in automatic discipline in most states. Fear of criminal enforcement deters some misconduct, as does the potential for civil liability (e.g., fraud or malpractice actions). As a practical matter, malpractice claims are difficult to prove (Kritzer & Vidmar 2018), but they are stressful for lawyers and occasionally lead to the collapse of law firms.

2.5. "Soft" Regulators

Soft regulators also affect lawyers' decisions about how to behave in practice, but these regulators do so informally, without the force of formal law. Soft regulators include malpractice insurers, the ethical infrastructure of law offices, and informal collegial controls.

2.5.1. Insurers. Insurers informally regulate private practitioners' conduct through requirements for lawyers seeking malpractice insurance (Cohen 1997, Levin 2016). Malpractice insurers are more likely to influence the behavior of firms of over 100 lawyers than small firms. Indeed, a significant number of solo lawyers, in particular, do not carry professional liability insurance because of cost and for other reasons (Kritzer & Vidmar 2018). Large firm representatives meet individually with malpractice insurers to review their law office and risk management procedures (Davis 1996, Levin 2016). Firms seek to reduce insurance costs by adopting insurers' recommended risk management measures (Baker & Swedloff 2015, Schneyer 1998). In contrast, when solo and small firm lawyers purchase malpractice insurance, the process is much more routinized. Nevertheless, solo and small firm insurers can affect lawyer behavior through educational information and by refusing to write coverage if lawyers do not use an engagement letter or have calendaring and conflict checking systems in place. The process of completing the insurance application also encourages some lawyers to adopt appropriate office systems (Levin 2016).

2.5.2. Ethical infrastructure. Schneyer (1991) first used the term "ethical infrastructure" to describe the internal organization, policies, and procedures a law firm can deploy to prevent misconduct. Ethical infrastructure can encompass office procedures such as software to avoid conflicts of interest and calendaring procedures to avoid missed deadlines. Office policies may include prohibiting trading in clients' stock (to prevent insider trading) or sitting on a client's board (to avoid conflicts of interest). Some offices have regular ethics training and designated ethics partners, general counsel, or risk management specialists who routinely answer lawyers' ethics questions (Chambliss 2006, Chambliss & Wilkins 2002). Although the term ethical infrastructure was coined in the context of large law firms, it is now used in a variety of law office settings (Chambliss 2012, Moorhead et al. 2019).

2.5.3. Informal collegial control. As noted, lawyers learn the norms and values of the legal profession from their communities of practice. These overlapping communities not only inform lawyers' understanding of appropriate professional conduct but also influence lawyers' conduct. For example, Landon (1990) found that lawyers in small town practice learned that breaking the trust of a colleague could harm a lawyer's professional reputation in a way that immediately—and adversely—affected the lawyer's practice. Lawyers made considerable efforts to accommodate one another, and those who failed to do so suffered negative reputational effects. Research has similarly explored collegial control over lawyers in criminal court communities and courtroom workgroups stemming from the ongoing, interdependent relationship among individual prosecutors, defense attorneys, and judges (Eisenstein & Jacob 1977, Flemming et al. 1992, Mather 1979, Van Cleve 2016). Collegial standards for professional conduct—and informal sanctions for deviation—have also been shown in other legal fields, such as divorce (Mather et al. 2001) and personal injury (Daniels & Martin 2015, Kritzer 2004), and in large law firms (Kelly 1994, Regan & Rohrer 2021). Collegial control is a “soft” regulator, however, as its power “may depend on such things as. . . the organization of a practice community, the strength of members' identity with the group, the intensity of members' socialization into the group. . . and the availability of avenues for establishing and communicating prestige and status within the group” (Mather et al. 2001, p. 180).

2.6. The Relevance of Gender and Race

Gender and racial differences can also affect how and where lawyers construct their understanding of ethical conduct and how ethical rules are enforced. Women and minority law students report feeling more alienated from the law school experience than white men (Kay & Gorman 2008, Mertz 2007). This is due, in part, to the perceived devaluing in law school of empathy and social justice, and to law school pedagogy, discrimination, and the students themselves. They also quickly learn that they are entering a profession in which the most prestigious positions—as equity Big Law partners—are occupied disproportionately by white males and will be difficult for them to achieve (Nelson et al. 2023, Regan & Rohrer 2021, Sterling & Reichman 2016, Wilkins & Gulati 1996). Women and minority lawyers sometimes turn to affinity bars to find support and develop advice networks that help them address challenges they confront in practice.

Nelson et al.'s (2023, p. 97) national study of lawyers 20 years following graduation shows how “gender, race, and class structure the careers of American lawyers.” White men work disproportionately in private practice, whereas women and minorities work disproportionately in legal services and government positions and work as inside counsel at about the same rate as white males (Nelson et al. 2023). Other crucial workplace differences include salary disparities, the frequency of part-time work by women, and early exit from legal careers (Kay & Gorman 2008, Nelson et al. 2023, Sterling & Reichman 2016). Professional discipline also affects these groups differently. Whereas women generally receive proportionately fewer complaints and less discipline than men, Black male attorneys receive proportionately more discipline complaints and serious discipline than white male attorneys (Farkas 2019).

3. LAWYERS' ETHICS IN PRACTICE SETTINGS

Empirical research also provides insight into how lawyers perceive and resolve ethical issues in different practice settings. Not only do client types, firm size, and areas of law vary in these settings in important ways, but lawyers' incentives, challenges, and concerns differ in ways that influence their thinking about ethical issues.

3.1. Private Practice

Private practitioners constitute the largest group of US lawyers, yet they differ widely. Just as elite lawyers once believed they were more “ethical” in representing their business clients than those lawyers representing individuals (Auerbach 1976, Carlin 1966), more recent reports of lawyers’ perceptions of ethical conduct continue to place large firm lawyers with corporate clients at the top and solo or small firm lawyers with individual clients at the bottom. Heinz et al.’s (2005) study found, based on law professors’ and lawyers’ ratings of lawyers’ reputation, that perceptions of ethical conduct were highly correlated with prestige and intellectual challenge. Mather & Levin’s (2023) study examined survey data from University of Michigan law school alumni that rated the ethical conduct of lawyers with whom they dealt (other than in their own office). Lawyers in fields of tax, intellectual property, securities, and general corporate law perceived lawyers in those fields to have the highest ethical conduct, in contrast to the ratings of ethical conduct by lawyers in criminal defense, domestic relations, immigration, and personal injury (Mather & Levin 2023). Client differences, firm size, salience of regulators, engagement in litigation, and other factors help explain this variation.

3.1.1. Lawyers with large corporate clients. Most large law firms can exert control and influence over lawyers in the firms through office hierarchy, law firm culture, ethical infrastructure, and compensation policies (Kelly 1994, Lazega 2001, Regan & Rohrer 2021). However, enormous changes in the size and structure of large law firms in the past 40 years have affected those controls. Firms have tripled in size, nationalized through the acquisition of local firms, and globalized by establishing offices overseas. The top Am Law 100 firms in 2019 averaged more than 1,000 lawyers each, and the firms had, on average, 21 offices (Regan & Rohrer 2021). Collegial control that once worked to construct and maintain professional values in a single firm has given way to bureaucratic structures to train lawyers and reduce the risk of misconduct (Regan 2004).

Other changes in large law firms have further lessened the power of firm-wide collegial control. Practice groups within firms promote distinct behavioral norms and compete for power and firm resources (Regan 2004, Regan & Rohrer 2021). The shift in large law firms from lockstep compensation to a system where compensation is tied to the business a partner generates (“eat what you kill”) means that lawyers may be willing to take positions for clients that stretch ethical boundaries to retain their business or their jobs (Kelly 1994, Regan 2004, Regan & Rohrer 2021). The lateral mobility of large firm partners—a now-frequent phenomenon—increases lawyers’ financial incentives to consent to client demands in order to maintain portable books of business to take to another firm (Fleischer 2010, Henderson & Bierman 2009). The increased difficulty of becoming a large firm equity partner may weaken collegial controls over associates who do not envision a long-term career with the firm.

Unlike earlier years, when large firm lawyers worked directly with their long-time business clients, in-house lawyers now play a much larger role in corporate decision making. Outside law firms are used less for routine business advice (Kim 2012, Regan & Rohrer 2021). Le Mire & Parker (2008) analyzed the key role in-house counsel in Australia play in hiring outside law firms, which gave them significant leverage. In-house counsel’s increased prominence can strengthen client demands and lower outside lawyers’ ability to resist them.

Large firm partners depend on a relatively small number of clients for their business and identify closely with clients’ interests. In Nelson’s (1985) classic study, large firm lawyers rarely saw any conflict between their values and what their clients asked them to do. Corporate finance lawyers in the United Kingdom similarly expressed strong client-first views, refusing to judge their clients’ demands (Vaughan & Oakley 2016). Yet the lawyers did articulate “highly personalized ‘redlines’ (things which corporate lawyers will not do for their clients)” (p. 51). Although the corporate

lawyer/client relationship is usually seen as a dyad, some point to key third parties (e.g., banks, insurers, government) who are part of the relationship. Flood (2016), for example, observes how lawyers' own interests in maintaining connections with bankers may steer these lawyers away from complete client loyalty.

Large firm ethical infrastructure, malpractice insurers, other regulators, and reputational concerns also affect the ethical conduct of large firm lawyers. Lawyers specializing in intellectual property, tax, and securities face additional regulation from federal agencies, with violations of their rules potentially resulting in lawyers' inability to continue practice before these agencies. Although research on discipline imposed by the Patent and Trademark Office (Lee 2020), the Internal Revenue Service, and the Securities and Exchange Commission suggests underenforcement, specialists in these fields consider possible sanctions when pressed by clients' demands. In a qualitative study of tax lawyers, some mentioned the risk of losing their license, whereas others pointed to malpractice risks (Hatfield & Kwon 2022). Indeed, some insurers refuse to cover lawyers who practice in the areas of securities and intellectual property due to the size of potential losses in those fields (Kritzer & Vidmar 2018). Studies of tax lawyers, patent prosecutors, and securities lawyers also point to reputational capital as a key resource prized by specialists (Conley & Mather 2012, Fleischer 2010, Hatfield & Kwon 2022, Schmidt 2012).

The nature of lawyers' work also affects their ethical conduct. Mather & Levin (2023) found that litigators rated the lawyers they dealt with as significantly less ethical than non-litigators rated their cohort. Earlier professional codes expressly encouraged lawyers to behave as zealous advocates, and current professional rules still permit it. Clients often expect such conduct, and a lawyer's reputation within the firm and with opposing counsel may depend on it. Most corporate litigators define their role as agent for their client rather than as fiduciary for clients or counselors (Kirkland 2005, Suchman 1998). High-stakes cases create significant incentives for litigators to test ethical boundaries. And there is little to constrain them because courts dislike motions to compel discovery and rarely impose sanctions. Zealous advocacy in litigation can easily lead to lawyers overlooking professional responsibilities such as disclosure obligations, candor, or civility.

3.1.2. Lawyers with individual and small business clients. Most private practitioners who represent individuals and small businesses practice in solo and small firms and earn substantially less than lawyers with corporate clients (Heinz et al. 2005, Nelson et al. 2023). They may work in commercial office buildings, in office-sharing arrangements with other lawyers, or at home (Levin 2004). Some lawyers in these practices lack administrative support to stay on top of phone calls, court dates, and other client matters (Levin 2004, Mather et al. 2001).

Due to the one-shot nature of most legal matters involving individuals, these clients often lack experience with—and information about—the legal system. This information asymmetry stands in stark contrast to the sophistication of large corporate clients with in-house counsel. Most lawyers in areas such as personal injury, family, and criminal defense say that their clients' inexperience with law, unrealistic expectations, and emotional state require the lawyers to take charge (Kritzer 2004, Mather 2003, Mather et al. 2001). As Carlin (1966) observed, it is easier for lawyers representing individuals to take advantage of less sophisticated individual clients than repeat business clients. Because lawyers who represent individuals must constantly bring in new clients (Daniels & Martin 2015), some may overpromise results and engage in other unethical conduct to obtain clients (Carlin 1966, Levin 2012).

Lawyers representing individuals are not monolithic, however, and research shows distinct communities of practice within fields, as well as significant stratification. High-end lawyers charge high fees for wealthy individual clients (e.g., in divorce, trusts and estates, or criminal defense), handle a small number of matters, and may practice within larger law firms or boutique firms.

High-end tort lawyers handle class actions or mass torts and engage in litigation, including some game playing and discovery abuses, not unlike their larger firm peers. White-collar criminal defense lawyers learn strategies for helping clients conceal evidence, while still viewing their conduct as “ethical” (Mann 1985, p. 156).

High-volume, small firm practitioners face their own ethical challenges. Divorce, criminal defense, and immigration lawyers who represent clients of limited means have a high volume of open cases and charge a low hourly rate or a flat fee. Lawyers know they can devote only a certain amount of time to each case, less than it may deserve, but it is all that the client can afford (Mather et al. 2001). Similarly, personal injury lawyers’ use of contingent fees, which ostensibly align client and lawyer interests, can lead lawyers to settle cases quickly, even when additional effort would likely yield better client outcomes (Engstrom 2009, Rosenthal 1974).

What keeps many small firm lawyers from unethical conduct in these cases—from completely selling out their clients—is their need to preserve their reputations (Daniels & Martin 2015, Kritzer 2004). A good reputation (including a demonstrated willingness to go to trial) helps personal injury lawyers obtain clients and also provides credibility in negotiations with other lawyers. Lawyers know that clients disappointed with case results could do great harm to their reputation, making it harder to gain new clients. Consequently, divorce lawyers try to set realistic client expectations for those they accept (Mather et al. 2001), and personal injury lawyers screen out most calls and consider whether cases are likely to be successful (Kritzer 2004). The lowest end of the personal injury bar consists of “settlement mills—high-volume personal injury law practices that aggressively advertise and mass produce the resolution of claims, typically with little client interaction and without initiating lawsuits, much less taking claims to trial” (Engstrom 2009, p. 1486). Reputation does not constrain these lawyers, and office incentives encourage fast resolution of cases.

In some practice specialties, lawyers may feel a strong desire to help their individual clients and antipathy for, and suspicion of, the ethical conduct of the other side. Thus, it is not uncommon for criminal defense lawyers to be highly critical and suspicious of prosecutors (and vice versa). Immigration lawyers sometimes deeply resent the government lawyers with whom they deal, feeling that they are unnecessarily harsh and unfair (Levin 2012). Plaintiffs’ personal injury lawyers in routine accident cases decry the game playing in discovery by large firm defense counsel (Suchman 1998). Civil rights lawyers representing individuals can also be deeply suspicious of the behavior of their lawyer counterparts in larger firms who represent employers or work for government. The perceived unfairness of opponents or the justice system may lead some lawyers to engage in unethical conduct (Levin 2012).

3.2. In-House Lawyers

Over the last 35 years, as corporations have faced increasing regulation and adopted internal compliance systems, they have recognized the benefits of employing in-house lawyers (ACC & Major, Lindsey & Africa 2023, Rostain 2008). Indeed, the number of in-house lawyers tripled between 1997 and 2020, growth that far surpassed increases in the private and government sectors (Henderson 2021). Once considered a “respectable exit strategy for lawyers” passed over for law firm partnership (Rostain 2008, p. 465), the general counsel position now attracts partners from elite law firms. In-house lawyers enjoy significant prestige, competitive salaries, and better work/life balance than large firm lawyers (Nelson et al. 2023). In-house lawyers’ offices range from one to several hundred lawyers, with most being small (ACC & Major, Lindsey & Africa 2023). Legal departments—rather than outside counsel—usually handle compliance, general corporate transactions, governance, contract and document management, employment/human resources, and privacy and security issues (ACC & Major, Lindsey & Africa 2023, Kim 2012).

In-house lawyers must negotiate a complex set of responsibilities and loyalties (Rosen 1989). Although the client is the organization, in-house lawyers answer to a group of individuals (the board, officers) and regularly deal with others in the organization who may have competing interests and objectives. Moreover, although they are responsible for compliance and expected to intervene when significant legal risks arise, they “are often regarded as mere ‘advisers’” to managers—and are expected to defer to them, even when there is serious legal risk (Kim 2012, p. 198).

Early research on in-house lawyers reported that they lived with “role strain” and “role ambiguity” (Donnell 1970). Nelson & Nielsen (2000) found that different in-house lawyers played one of three roles: “cop” (policing the organization), counsel (confining advice to legal questions), and entrepreneur (offering business advice beyond the legal function). All three attempted to avoid conflict with business executives and left the final call on acceptable legal risk to business people. A later study by Moorhead et al. (2019) involving UK in-house counsel (which included government lawyers) identified five distinct role orientations: commercial, exploiting uncertainties, neutral advisor, ethical, and independent, with commercial and independent being the most important. They described a “tournament of influence,” i.e., an ongoing negotiation between in-house counsel and management to actively involve counsel in commercial decisions and not relegate them to rubber-stamping dubious decisions with the imprimatur of legality (p. 72).

Kim (2012, p. 214) has noted that the empirical literature is “deeply conflicted” on the question of whether most inside counsel assert their professional authority when faced with serious legal risks to the organization. The answer may depend, in part, upon who is being asked the question. Nelson & Nielsen (2000) found that their respondents typically left the call on acceptable levels of legal risk to the business people. Yet in one small study, general counsel of large blue-chip firms reported they were able to stop deals they believed posed significant legal risks to their companies (Rostain 2008). Le Mire & Parker (2008, p. 222) likewise cite one Australian in-house general counsel who felt that when the organization was engaged in litigation, it was important to have the ability to say to the CEO, “no, we’re not going to do that.”

Moorhead et al. (2019) found a high percentage of UK in-house lawyers reported a near-total absence of formal training on professional ethics. The extent of training for US in-house lawyers is not known. What is clear, however, is the challenge facing lawyers who are dependent for their livelihoods on a single employer and whose bonuses and promotions depend upon how their work is perceived within the organization. In-house lawyers—especially the general counsel—identify with and are often psychologically and financially invested in the success of the company. Not only may general counsel’s position cause them to feel “natural empathy,” but “the general counsel’s working definition of independent professional judgment may be shaded by a managerialist view that de-emphasizes compliance with legal and ethical norms” (DeMott 2012, pp. 465–66).

Relatively little is known about ethical misconduct of in-house counsel, and discipline involving them is rare (Reisinger 2011). Organizations are more likely to fire an in-house lawyer than to file a discipline complaint that could embarrass the company. Similarly, organizations rarely sue their lawyers for malpractice or breach of fiduciary duty. Although not common, in-house counsel have been sanctioned by courts in litigation or civilly sanctioned by an agency (DeMott 2005, Kewelramani 2017). Prosecution of in-house counsel for criminal misconduct, such as securities law violations, fraud, or obstruction of justice, is relatively rare (Copeland 2011, Reisinger 2011).

3.3. Government Lawyers

Government lawyers work in various positions in state, federal, and local governments and—with the exception of prosecutors—are understudied. These lawyers draft legislation and administrative rules and engage in counseling, litigation, enforcement, and transactional work. They are subject

to both the legal profession's rules of conduct and government ethics regulations that seek to prevent government lawyer self-dealing, undue outside influence on government affairs, and conflicts of interest when lawyers move between government jobs and private practice. Government lawyers are not typically subject to malpractice claims.

Some government lawyers face intense partisan pressures, whereas others perform routinized work that is relatively unaffected by changes in political leadership (e.g., government contract lawyers). The responsibilities of government lawyers are complicated by the question of who is the government lawyer's "client." Does the lawyer owe responsibilities to the agency itself, the branch of government, the government as a whole, or the public interest (Lancot 1991, Miller 1987, Purdy 1987)? If government lawyers act on their own conceptions of the public interest, they risk substituting their personal views for government policy directed by democratically elected officials (Cramton 1991, Lee & Ashar 2019). Government lawyers must also contend with pressures from a partisan administration that may expect lawyers to fit the law to its own political agenda (Clayton 1995, Cummings 2024, Herz 1995).

Some scholarly attention has focused on lawyers who serve as legislative drafters (Gilman 2023, Nourse & Schachter 2002, Purdy 1987). Once viewed as a purely technical activity, the drafting process is now recognized as inherently political (Cormacain 2017, Marcello 1995). Mastenbroek & Tholen (2009) studied Dutch lawyers responsible for legislative drafting and noted the role conflict between political loyalty and legal professionalism. Most of the lawyers interviewed had an integrated role conception, seeking to connect political loyalty to legal conscientiousness. That is, when confronted with conflicts between loyalty to EU legality and a minister's policy demands, legislative drafters sought to follow EU law while remaining loyal to their ministers. When not possible, most respondents indicated that political loyalty to the ministers prevailed (Tholen & Mastenbroek 2013).

Unlike legislative drafters whose work is rarely observed in public, prosecutors' work is more visible. Empirical research on prosecutors began during Prohibition (Moley 1929), was revived after the urban unrest of the 1960s (Eisenstein & Jacob 1977, Heumann 1978, Mather 1979), and has continued in recent years (Starr & Rehavi 2013, Van Cleve 2016, Wright et al. 2022). Prosecutors have tremendous discretionary power in filing charges and plea bargaining, and office policies vary concerning which cases are prosecution-worthy and why (Frederick & Stemen 2012, Levine 2006, Miller & Wright 2008, Wright et al. 2022). Prosecutors' offices also differ in the degree of independence given each attorney, with some offices asserting strong bureaucratic control and others providing little oversight (Barkow 2010, Yaroshefsky & Green 2012).

Prosecutors have dual responsibilities as ministers of justice and advocates. Meeting both responsibilities can be difficult. "Winning" is important to many prosecutors (Wright & Levine 2014). Prosecutors typically measure winning by conviction rates, and plea bargaining guarantees a conviction. Fewer than 5% of criminal cases are resolved by trial, but winning at trial can have positive effects on a lawyer's future career (Yaroshefsky & Green 2012). Winning is made harder by rules that require prosecutors to disclose damaging information to defense counsel if it is "material" to guilt or mitigation of punishment. Some prosecutors take an open file approach to disclosing this evidence, whereas others play games and wait until shortly before trial to disclose (Yaroshefsky & Green 2012). Prosecutors also feel pressure to maintain good relations with law enforcement, which can include advocating for a conviction despite knowledge of police misconduct (Van Cleve 2016). Experienced prosecutors see their roles differently than newer prosecutors, and studies suggest they become less adversarial over time (Bibas 2009, Heumann 1978, Wright & Levine 2014).

Prosecutors learn the norms of practice not only from senior prosecutors in their offices but from judges and opposing lawyers (Eisenstein & Jacob 1977, Flemming et al. 1992,

Heumann 1978, Mather 1979). Most large offices have policies and bureaucratic routines, whereas smaller ones generally defer to the preferences of the head prosecutor. For example, Los Angeles County required deputy prosecutors to obtain written approval of any dismissal or reduction of charges, although deputies learned ways to circumvent the policy (Mather 1979). The ethical culture of prosecutors' offices varies significantly across jurisdictions and between federal and state offices. Even in cases with clear evidence of prosecutorial misconduct, professional discipline is rarely imposed, prosecutors have immunity from lawsuits by defendants, and "criminal liability is not a meaningful risk for prosecutors" (Yaroshefsky & Green 2012, p. 276).

3.4. Legal Services and Public Defenders

Lawyers in legal services represent low-income individuals in civil law matters such as housing, family, and government benefits, whereas public defenders represent indigent criminal defendants. Their median starting salary is about one-quarter of the entry-level salary at some large law firms (ABA 2023b). For legal services lawyers, low salaries along with heavy caseloads, limited time and resources, lack of respect from clients and other lawyers, and inability to effect broader social change lead to routinized decision making and professional marginalization (Katz 1982, Zaloznaya & Nielsen 2011). Yet some legal services lawyers explain their dedication to their work by pointing to the concrete, immediate impact their efforts have on people's lives, in contrast to long-term social visions that might never be realized with law reform (Shdaimah 2012, Zaloznaya & Nielsen 2011).

Critics of legal aid practice in the 1990s—and some legal services lawyers themselves—faulted lawyers for taking charge of their clients' legal problems, reinforcing the power differential between lawyer and client (López 1992, White 1990). A sociolinguistic study found that legal aid lawyers dominated their clients through control over problem definition, topic, and timing (Hosticka 1979). Southworth (1996) likewise found little client participation in decision making, with legal services lawyers describing clients as inexperienced and unsophisticated. Race and class differences between lawyers and clients exacerbate problems of communication because some clients expect lawyers to make decisions for them, whereas others resent and distrust their lawyers for not being "real" lawyers. Legal services attorneys attempt to inform and empower clients, but they still struggle with client dependency (Shdaimah 2012) or client hostility (Greene 2016, Zaloznaya & Nielsen 2011).

Another ethical dilemma for legal services lawyers involves the need to set limits in helping clients. Low-income clients with legal problems typically need assistance with multiple issues, yet their lawyers are constrained by the organizations from providing assistance on all these problems. Legal services lawyers are not psychologists or social workers, and even if they try to help more broadly, they lack the time and resources to do so and can burn out easily (Shdaimah 2012, Zaloznaya & Nielsen 2011). Given that women attorneys work disproportionately in legal services and that some clients expect women lawyers to fulfill a caregiving role, the need for them to set boundaries is especially important. Informal discussions with colleagues provide lawyers with advice and guidance to help them resolve ethical dilemmas (Shdaimah 2012).

The challenges public defenders face are equally acute. Publicly funded defense attorneys represent the vast majority of felony defendants. Most of these attorneys (more than 80% in urban areas) work in a public defender office; others are private attorneys assigned by the court or private attorneys on contract (Wright & Roberts 2023). Public defense is notoriously underfunded. To maintain ethical standards of competence, some public defenders have gone on strike or sued states for additional resources.

Dozens of empirical studies have compared the effectiveness of privately retained counsel with public defenders or compared public defenders with assigned counsel (Anderson & Heaton 2012, Frederique et al. 2014–2015, Primus 2016, Wright & Roberts 2023). Research results overall are inconclusive: Conviction rates are extremely high for defendants with all types of counsel, and the few sentencing differences favored retained counsel in some studies and public defenders in others. Defendants who choose their own attorneys have more trust and confidence in them, leading to better lawyer–client communication with private counsel than with public defenders (Casper 1972, Mather 1979). Difficulties in comparing defense counsel stem from the wide variation in public defense across jurisdictions in terms of office cultures, compensation, and administrative controls (Anderson & Heaton 2012, Primus 2016, Uphoff & Wood 1998).

Like legal services lawyers, public defenders struggle to involve clients in decision making. Ambiguity in the legal profession's rules concerning clients' rights to choose case objectives, and lawyers' professional judgment about the means to achieve them, is exacerbated in practice by indigent clients' inability to select their own lawyer and, sometimes, psychological impairments (Mather 2003, Uphoff & Wood 1998, Van Cleve 2012). The assignment of clients to public defenders leaves many defendants suspicious and distrustful of their public "pretender," especially when largely white attorneys dominate the decision making of minority defendants (Richardson & Goff 2013; Van Cleve 2016, p. 20).

Public defenders, like prosecutors, learn the norms of practice from office colleagues and in courtroom workgroups. In some cases, those norms lead public defenders to advocate less zealously than they should for one client, out of fear that it will harm others. Yet office cultures vary significantly, with some encouraging more adversarial behavior than others and having policies in place to support it (Mather 1979, Uphoff & Wood 1998). Public defenders are rarely disciplined, because discipline authorities often decline to consider claims of ineffective assistance of counsel. And malpractice is seldom a concern because in many jurisdictions clients must demonstrate actual innocence to prevail (Kritzer & Vidmar 2018).

4. CONCLUSION

As noted, the symbolic messages from law schools and hard regulators of lawyers emphasize a single set of ethical rules and enforcement mechanisms. But the underlying messages lawyers receive in their workplaces reflect and reinforce the stratification of the profession and lawyers' beliefs about what constitutes an ethical problem. Big Law lawyers are unlikely to face professional discipline for the work they do for their large corporate clients. Yet solo lawyers or those in small firms handling the messy emotional problems of individuals with personal injuries or family conflicts or facing bankruptcy or criminal charges are subject to disciplinary enforcement. These priorities also permeate lawyers' professional rules, which enable corporate litigators to engage in zealous advocacy and impose few requirements on transactional lawyers when they negotiate but rein in lower-status lawyers with limits on lawyers' individual client acquisition efforts and fee arrangements.

Nevertheless, there is ample evidence that certain professional values still constrain lawyers. Given that large firms can retain partners only by attending to the bottom line, many set up internal organizational controls to reduce monetary risks of malpractice, so that risk management operates to reinforce ethical conduct (Davis 2008, Regan & Rohrer 2021). Concerns about malpractice or disqualification constrain lawyers from taking on clients they cannot adequately represent. Specialists in some areas are constrained by federal agency oversight. Yet litigation can unleash lawyers' excessive zeal and game playing in high-stakes, well-funded cases, and courts seldom rein them in.

When lawyers specialize in areas of law and work regularly with other lawyers in that area, they share a common understanding of typical clients, problems, processes, and laws—leading to the construction and maintenance of norms of practice. Criminal defense and personal injury lawyers recognize “what a case is worth,” and most divorce lawyers act “reasonably” (Mather 1979, Mather et al. 2001). At its best, such informal collegial control facilitates expeditious handling of cases and reduces costs for clients, while still protecting clients’ legal rights. At its worse, lawyers take advantage of clients or impose “racialized justice” in criminal courts (Richardson & Goff 2013, Van Cleve 2016).

As we have seen, lawyers’ concerns about employment security and their own financial interests can negatively affect their ethical decision making. These concerns are likely to become even more acute over time. Large firm lawyers face increased financial pressures as firms raise associate salaries and billing rates and compete to retain partners and clients. Private lawyers who represent individuals struggle to stay in business as they vie with online providers of legal assistance and nonlawyers in some states who can now provide legal services. Younger lawyers struggle to demonstrate how they can add value as generative artificial intelligence threatens to take their jobs. All of these developments can push lawyers to value expedience and personal gain over ethical behavior.

In a different way, money—or the lack of it—affects lawyers’ ability to engage in the ethical conduct required by the profession’s rules. Civil legal aid is notoriously underfunded, leaving legal services lawyers unable to represent millions of the low-income individuals with acute legal needs. Due to the demands on their time, legal services lawyers may resort to triage—leaving insufficient time to listen to all clients and serve their needs (Shdaimah 2012). Likewise, without adequate funding, public defenders in many jurisdictions carry enormous caseloads, making it impossible for them to provide competent representation to their clients.

Two areas of lawyering deserve specific mention: in-house counsel and criminal prosecution. In-house counsel play a substantially larger role in the legal profession than ever before, yet we know relatively little about them. They are deeply invested in the success of the organization and entirely dependent on a single employer for their livelihoods. Most empirical work has focused on the general counsel in large organizations, but Moorhead et al.’s (2019) study of UK in-house lawyers finds great variation in roles played by all inside counsel. What would such a study reveal in the United States? Given their importance in corporate decision making, further study of this group is essential.

Criminal prosecutors have a degree of political accountability through election or appointment, but they lack meaningful oversight of their day-to-day ethical conduct. Prosecutors are insulated from civil liability and rarely disciplined. Yet today, they stand at the forefront of a racial reckoning in the criminal justice system. Efforts such as the Innocence Project and post-conviction units that review claims of prosecutorial misconduct have put a spotlight on the abuse of prosecutorial discretion, as have court decisions. What other initiatives might help to remedy prosecutorial abuses?

Empirical research can help us better understand the conditions that allow—or even facilitate—lawyers’ unethical conduct. There is still much we do not know. For example, how do lawyers working in different areas perceive the various regulatory and other constraints on their conduct? Which are more salient, and why? To what extent does identification with, or sympathy for, clients affect lawyers’ ethical decisions? We also have far more empirical research about lawyers serving individuals than lawyers serving large corporate clients or working in government. We can see the ethical problems of excessive zeal in litigation but not when lawyers are in their offices drafting documents or advising clients. What does the ethical infrastructure even look like in government or in-house counsel’s offices? In short, there is still much to be learned about how lawyers identify, understand, and resolve ethical challenges in practice.

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